

# Delaware County Commissioners Meeting February 20th 2024

| Meeting Metadata | Details                                                                                                 |
|------------------|---------------------------------------------------------------------------------------------------------|
| Video Recording  | <a href="https://www.youtube.com/watch?v=oJtg6AOk_r_c">https://www.youtube.com/watch?v=oJtg6AOk_r_c</a> |
| Publication Date | 2024-02-21T03:17:19Z                                                                                    |
| Target Category  | delaware_county                                                                                         |

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## Delaware County Commissioners Meeting Report

**Meeting Date:** February 20, 2024

**Call to Order:** 9:04 AM

### 1. Pre-Meeting Hearings & Committee Work Sessions

*No statutory public hearing or committee session was held immediately prior to calling the regular meeting to order.*

### 2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order at 9:04 AM on February 20, 2024.
- **Attendance:**
  - **Members Present:** Mr. Henry, Mr. Reagan (Reagan), Mr. King (Presiding Officer)
  - **Members Absent:** Mr. Brooks (explicitly noted as absent during discussions)
  - **Presiding Officer:** Mr. King

### 3. Preliminary & Procedural Business

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- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
  - **Approval of Minutes:**
    - **Discussion:** Prior meeting minutes had not been reviewed by the board members.
    - **Action & Vote Disposition:** Motion made and seconded to table the approval of minutes until the next meeting. Passed Unanimously via roll call.
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### 4. Substantive Business & Board Action

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- **00:09:30 Presentation: IRax (Past Recovery Services)**
  - **Sponsor / Presenter:** Shane Aart, Program Director for Delaware County IRax and site supervisor for Past Recovery Services.
  - **Deliberation Summary:** Aart presented annual updates and requested continued funding. The IRax program serves individuals incarcerated in the Delaware County Jail (serving 281 individuals to date with over 20,000 engagements). Community peers, funded jointly by the Muncie Mayor's Office and County Commissioners, assist individuals post-release with identification, birth certificates, social security cards, housing, clothing, hygiene, transportation, and family reunification. Aart requested a renewal of the \$50,000 annual funding allocation. Commissioners expressed strong support and noted they would look into finding the funds upon Mr. Brooks' return.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Informational presentation; no formal vote taken.
- **00:14:38 Presentation & Discussion: Fiddler Technologies Digitization and Security Contracts**
  - **Sponsor / Presenter:** Charlie Richmond (Auditor's Office), Jan Smoot (County Recorder), and Peter Alis (Fiddler Technologies).
  - **Deliberation Summary:** Presented a joint project between the Auditor and Recorder offices to digitize older historical records (dating back to the 1820s) using US Imaging, and implement cloud-based remote storage and security (Bastion software). The Recorder's office portion covers approximately 50% remaining work, while the Auditor's office starts from scratch. The total project cost is approximately \$520,000 across separate contracts, with annual Bastion storage costs of about \$1,760. Commissioners expressed surprise at the total cost and raised questions regarding ARPA fund eligibility.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Deferred / Tabled to the next meeting for further review of contracts and ARPA funding rules.
- **00:35:55 Bid Opening: Fuel Bids**

- **Sponsor / Presenter:** Tom (Highway Department) / County Commissioners.
  - **Deliberation Summary:** Opened fuel bids from Heritage Petroleum LLC (Evansville, IN) and AGV Best (Muncie, IN) featuring various escalation and firm pricing options for unleaded gasoline and diesel fuels. Due to the complexity and volume of different price points, it was recommended to table the bids for administrative tabulation.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Motion made and seconded to take the fuel bids under advisement and direct staff to compile a spreadsheet. Passed Unanimously via roll call.
- **00:39:02 Interlocal Agreement: Hamilton Township**
  - **Sponsor / Presenter:** Board of Commissioners.
  - **Deliberation Summary:** Proposed interlocal agreement involving Hamilton Township, currently being reviewed by James and Ms. Piper.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Motion made and seconded to table the agreement until the next meeting. Passed Unanimously via roll call.
- **00:39:29 Subdivision Plat: Dyer Cemetery / Ashton Land Surveyors**
  - **Sponsor / Presenter:** Kathy Vanlandingham (Ashton Land Surveyors) and Kylen Swackhammer (Plan Commission).
  - **Deliberation Summary:** Request to dedicate road frontage right-of-way for a 3-acre parcel on Martin Street (west of 2050 North Martin Street, Gaston) to establish an 18-plot family cemetery, leaving the remaining acreage buildable. The proposal cleared the subdivision committee, preliminary plat committee, and the plan commission with minor wording changes.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Approved by Voice Vote (followed by a formal roll call vote which passed unanimously).
- **00:42:18 Annual Maintenance Agreement: WW Williams Generators**
  - **Sponsor / Presenter:** Steve Foster (Building Superintendent).
  - **Deliberation Summary:** Annual service agreement covering all three county generators and Automatic Transfer Switches (ATS) located at the courthouse, 911 center, and jail, totaling \$3,982.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Approved by Voice Vote (followed by a formal roll call vote which passed unanimously).
- **00:42:44 Resolution: 2024 Primary and Presidential Election Polling Locations**
  - **Sponsor / Presenter:** Rick Spangler, Delaware County Clerk.
  - **Deliberation Summary:** Presented proposed voting locations for the upcoming primary and presidential elections. Clerk Spangler noted ongoing efforts to remove polling sites from schools where feasible, but emphasized logistical and voter-

access constraints (such as facility size, parking, and ADA compliance) for the upcoming primary within 90 days. Commissioners discussed exploring alternative non-school sites for future elections.

- **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Motion made and seconded to approve the polling locations as presented. Passed Unanimously via roll call.
  - **00:47:37 Grant Acceptance: 911 Training Grant**
    - **Sponsor / Presenter:** Mr. Cummings (911 Center).
    - **Deliberation Summary:** Request to accept a \$4,500 training grant awarded by the Law Foundation.
    - **Item-Specific Public Input:** None.
    - **Action & Vote Disposition:** Approved by Voice Vote (followed by a formal roll call vote which passed unanimously).
  - **00:48:00 Resolution 2024-25: Changes to Official Zoning Maps**
    - **Sponsor / Presenter:** Kylan Swackhammer, Plan Commission.
    - **Deliberation Summary:** Annual administrative approval of all zoning map changes enacted over the past year.
    - **Item-Specific Public Input:** None.
    - **Action & Vote Disposition:** Approved by Voice Vote (followed by a formal roll call vote which passed unanimously).
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## 5. Open Public Comment / Citizen Forum

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- **01:04:32 Claire Bert (District Director, Delaware County Soil and Water Conservation District - SWCD)**
    - Provided updates on the SWCD's upcoming annual meeting on Thursday, February 29th at the Knights of Columbus Hall on West Purdue Avenue, featuring farmer and commercial composter John Shoup.
    - Distributed the 2023 annual report, winter/spring event calendar, and noted that the 2024 plat book is available at their office for \$25.
  - **01:06:56 Harold King (Resident, 18300 North 850 West, Gaston)**
    - Addressed concerns regarding the county's solar ordinance.
    - Cited studies from New Jersey, Texas, and Kentucky arguing that properties located within three miles of solar installations experience negative impacts on property values, and urged the commissioners to incorporate stronger citizen protections into the ongoing solar ordinance revisions.
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## 6. Administrative Updates & Adjournment

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- **Staff & Board Announcements:**

- **Emily Anderson (Court Administrator):** Publicly thanked the commissioners for providing the Schaefer leadership training classes for county supervisory staff.
- **Tommy Hart (Highway Department):** Provided a brief update on winter weather response, thanking highway crews and mechanics for their hard work clearing snow over the weekend. Reminded the public to slow down and use caution during winter weather events.
- **Steve Foster (Building Superintendent):** Provided an update on repairs to frozen air handlers at the Justice Center, confirmed that roof leaks were minor and unrelated to the warranted new roof, and thanked the commissioners for their support over his two years on the job.
- **John Cantino & Cory Kiss (Emergency Management Agency - EMA):** Recognized EMA volunteers during EMA Appreciation Week, highlighting that volunteers contributed 4,852 hours of service and answered 80 calls over the past year. Introduced attending volunteers and announced upcoming student public safety training programs in local schools.
- **Commissioner Reagan:** Distributed a state housing survey action plan for inclusion on the county website.
- **Payment of Claims:** General claims approved in the amount of \$1,289,190.28; ARPA claims approved in the amount of \$111,138.68 (with Commissioner Reagan noting a reservation regarding one specific claim and requesting further detail on ARPA items). Approved via roll call.
- **Adjournment:**
  - Presiding officer transitioned hats to thank local law enforcement, emergency services, and agencies (including the Sheriff's Department, SWAT, Muncie PD, Yorktown, Chesterfield, Middletown, Eaton, Gaston, State Police, Madison County, ATF, and 911 dispatch) for their professional response to an incident in Daleville the previous Thursday night/Friday.
  - **Disposition:** Motion made and seconded to recess/adjourn. Passed Unanimously via roll call.